

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

Sri H.P. Dubey, appearing for respondents No.2 and 3, prays for and is allowed a week's time to obtain instructions.

Put up on 10th of February 2011 as fresh.

Order Date :- 1.2.2011

Rakesh

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

As prayed on behalf of Shri H.P.Dube, learned counsel for the respondents, put up this case on Tuesday, i.e. 15th February, 2011 as fresh.

Order Date :- 10.2.2011

Pk

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Kumar Dixit, J.

As prayed by Sri H.P. Dube, list on 21.2.2011 as fresh to enable him obtain instructions.

Till then no coercive action shall be taken against the petitioner in pursuance of the recovery citation dated 15.1.2011.

Order Date :- 15.2.2011

Ram Murti

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

Shri H.P. Dube, learned counsel appearing for respondent prays for one weeks further time to obtain instructions.

As prayed, put up this case as fresh on 1.3.2011.

Interim order, already granted, shall continue till the next date of listing.

Order Date :- 21.2.2011

Pk

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Shyam Shankar Tiwari, J.

As prayed by Shri H.P. Dube, learned counsel appearing for respondent, put up on 10.3.2011 as fresh.

Interim order, already granted, shall continue till the next date of listing.

Order Date :- 3.3.2011

RU

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Pankaj Dube, learned counsel for the respondent nos. 2 and 3, the case is directed to be put up as fresh on 28.3.2011 so as to enable him to obtain instructions in the matter.

Interim order, already granted, will continue to remain operative till the next date fixed in the matter.

Order Date :- 10.3.2011

Rmk.

Court No. - 36

Case :- WRIT - C No. - 5998 of 2011

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. Through Secy, Of Electricity Lko. & Others

Petitioner Counsel :- Shrawan Kumar Dubey, Bijendra Kumar Mishra

Respondent Counsel :- C.S.C., H.P. Dube

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

The petitioner has filed the present Writ Petition making the following prayers:

" I) Issue a writ , order or direction in the nature of Certiorari quashing the impugned recovery certificate dated 15.1.2011 and bill dated 14.12.2010 by which , the petitioner was directed to deposit the entire Bill amount forthwith.

II) Issue a writ ,order or direction in the nature of mandamus commanding to adjust the paid amount in the bill after excluding compound cost and penalty and rest amount taken in easy instalment fixed by this Hon'ble Court.

III) Issue a writ order or direction in the nature of mandamus commanding the respondent no.2 to consider and decide the reply/representation dated 14.1.2011 filed by the petitioner the electricity department within specific time granted by this Hon'ble Court.

IV) Issue any other writ , order or direction as this Hon'ble Court may deem fit and proper in the circumstances of the case.

V) Award the cost of the petition through out to the petitioner."

It appears that the petitioner has been having Electricity Connection for running of 7.5. Horse Power Electric Motor for Flour Mill.

The Recovery Citation dated 15.1.2011 (Annexure No. 7 to the Writ Petition) has been issued to the petitioner seeking recovery of Rs. 1,50,025/- plus other charges from the petitioner. The Bill for consumption of Electricity dated 14.12.2010 (Annexure No. 6 to the Writ Petition) has been issued to the petitioner for depositing a sum of Rs. 2,76,751.00.

The petitioner claims to have made various deposits as per the receipts, copies whereof have been collectively filed as Annexure No. 2 to the Writ Petition.

It further appears that the Checking was made in the premises of the petitioner, and unauthorized use of Electricity was allegedly detected whereupon Provisional Assessment dated 21.8.2010 (Annexure No. 5 to the Writ Petition) was made.

The petitioner filed Objections dated 14.1.2011 (Annexure No. 8 to the

Writ Petition) in respect of the aforesaid Provisional Assessment.

By the Order dated 1.2.2011, Sri H.P. Dube , learned counsel for the respondent nos. 2 and 3 was granted a week's time to obtain instructions in the matter.

Sri H.P. Dube, on the basis of the instructions received him , states that the Citation dated 15.1.2011 (Annexure No. 7 to the Writ Petition), impugned in the present Writ Petition, has been issued in regard to the regular consumption of Electricity by the petitioner in respect of the Electricity Connection. It is further stated by Sri Dube that the said Citation is not in regard to the Provisional Assessment made in respect of the petitioner on basis of the Checking made in the premises of the petitioner.

In view of the above, it is evident that the aforesaid Citation dated 15.1.2011 pertains to consumption of Electricity by the petitioner in respect of the Electricity Connection taken by the him from the respondents.

As noted above, the Electricity Bill dated 14.12.2010 (Annexure No. 6 to the Writ Petition) has been issued to the petitioner in regard to the said consumption.

Clause 6.5 of the U.P. Electricity Supply Code , 2005 , inter-alia, provides that in case , the consumer disputes the accuracy of any Bill, he may file Complaint/Objections in regard to the same before the Competent Authority (Executive Engineer) whereupon, the Competent Authority (Executive Engineer) will decide the said Complaint/Objections.

Sri Bijendra Kumar Mishra, learned counsel for the petitioner submits that the petitioner will file Objections before the Executive Engineer (respondent no.2) in respect of the aforesaid Electricity Bill dated 14.12.2010 (Annexure No. 6 to the Writ Petition), and the Executive Engineer (respondent no. 2) may be directed to decide the same.

Sri H. P.Dube, learned counsel for the respondent nos. 2 and 3 submits that in case, the Objections are made by the petitioner, the same will be decided expeditiously.

In view of the above, we are of the opinion that it will be in the interest of justice that the Writ Petition be disposed of with the following directions:

(1) Within four weeks from today, the petitioner will submit his Objections to the aforesaid Electricity Bill dated 14.12.2010 before the Executive Engineer (respondent no.2) along with deposit of Rs. 75,000/- .

(2) On receipt of such Objections along with such deposit, the Executive Engineer (respondent no. 2) will decide the said Objections by passing speaking order expeditiously, preferably within three weeks after giving opportunity of hearing to the petitioner.

(3) For a period of three months or till the disposal of the Objections of the petitioner by the Executive Engineer (respondent no. 2), whichever is earlier , the recovery pursuant to the impugned Citation dated 15.1.2011 (Annexure

No. 7 to the Writ Petition) will remain stayed.

(4) Recovery in respect of the aforesaid Electricity Bill will abide by the decision of the Executive Engineer (respondent no.2) on the Objections to be filed by the petitioner.

(5) In case, the petitioner fails to submit the Objections and/or make the deposit within the stipulated period mentioned above, this Order will automatically stand vacated, and it will be open to the concerned authority to proceed against the petitioner in accordance with law.

The Writ Petition is accordingly disposed of with the aforesaid directions.

Order Date :- 28.3.2011

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